

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**COMPLAINANTS’ MOTION FOR LEAVE TO FILE A RESPONSE/REPLY TO
RESPONDENTS’ REPLY TO PETITION FOR LEAVE TO
SUPPLEMENT EXCEPTIONS**

On March 7, 2017, the undersigned, Counsel for complainants MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY (collectively “complainants”), filed a Petition for Leave to Supplement Exceptions to the January 17, 2017 Initial Decision (“ID”) of the Presiding Officer, which dismissed, in part complainants’ claims that respondents had violated the Shipping Act of 1984, 46 U.S.C. §40101, et. seq. (the “Shipping Act”). On March 9, 2017, respondents by their counsel filed their respective replies to the Petition for Leave to Supplement Exceptions.

Pursuant to FMC Rule 502.71, 46 C.F.R. 502.71(c), the undersigned now requests leave of the Commission to file a response/reply to the Reply to the Petition for Leave to Supplement Exceptions of respondents Marine Transport Logistics Inc. (“MTL”) and Dimitry Alper (“respondents”).

“EXTRAORDINARY CIRCUMSTANCES” WARRANT COMPLAINANTS’ REPLY

Pursuant to 46 C.F.R. § 502.71, as adopted by Rule 71 of the Commission’s Rules of Practice and Procedure (“CRPP”), a moving party may file a Reply to a non-dispositive motion “...upon a showing of extraordinary circumstances.” It is respectfully submitted that as set forth below extraordinary circumstances exist herein which warrant the granting of leave to Complainants to interpose a response/reply to their instant petition.

In the first instance, while Respondent MTL’s reply to the Petition for Leave to Supplement Exceptions is titled as a “Reply”, it is in actuality a Cross-Motion to strike the Certification Of Alexander Safonov containing the “Original” Bill of Lading (annexed to complainants’ Petition) from the record in this matter, as well as the “Copart” invoice annexed thereto. As set forth below, these documents are new and have not been previously provided. The Commission may recall that in complainants’ Exceptions to the Presiding Officer’s Initial Decision, and with respect to the related Federal matter described therein, respondents claim to have sold the subject Mercedes in order to recover “outstanding debts owed by plaintiffs” and claim to have asserted a lien upon the Mercedes for “prior debts” pursuant to clause “15” of MTL’s Bill of Lading (See, Brief in Support of Exceptions at p. 27).

As further explained in complainants’ Exceptions, the respondents specifically claimed to have sold the Mercedes to third-party MEAA for \$3500 via wire transfer paid by MEAA to respondents, a claim denied by MEAA’s President, Alexander Safonov in a Certification previously provided to the Presiding Officer. At the very same time, and in the matter *Crocus Investments, LLC et al. v. Marine Transport Logistics Inc. et al.*, (FMC Docket No.: 15-04), respondents claimed that the \$3500.00 paid by MEAA was for the purchase of a “boat trailer” (See, Brief in Support of Exceptions at p. 27).

As additionally explained in complainants' Exceptions, the respondents violated the shipping act by mishandling and/or misdelivering the subject Mercedes to Dubai *prior* to selling the vehicle under the pretext of a maritime lien and *not* a "warehouse lien". By respondents' own admission, the Mercedes was misdelivered to Dubai, where it was subsequently sold. Specifically, the respondents have purported to assert a "maritime lien" on the Mercedes for monies allegedly due and owing to respondents based upon invoices that did not require payment until dates certain which were *after* the Bill of Lading was issued, ultimately begging the question as to whether or not this lien was a "warehouse" lien as stated in the ID. (See, Brief in Support of Exceptions at p. 25).

Therefore the Certification of Alexander Safonov and the documents annexed thereto are both material and relevant for the Commission's determination as to whether or not a contract of carriage for the ocean transport of the subject Mercedes was entered into between complainants and respondents.

Additionally, respondent MTL, by their counsel has apparently seen fit to fault complainants for failing to recognize the "relevance" of the Bill of Lading and have accused complainants of not being "candid" with the Commission regarding complainants' alleged failure to annex the "Original" MTL Bill of Lading to their Exceptions. What should be "relevant" for the Commission, however, is the fact that respondents were apparently too concerned, or afraid to *include* a copy of the "Original" MTL Bill of Lading (together with other documents that were in their sole, custody and possession up until the time of this writing) in their opposition to complainants Exceptions. While respondents would have been content to sweep that document "under the rug", complainants would rather that the implications arising out of the existence of said document be decided by the Commission.

As set forth in the record in this matter, complainants explained that the respondents have *denied* in Federal Court to having converted complainants' Mercedes, instead claiming to have exercised a "maritime lien". In the *instant* matter and as set forth respondents reply to which this responds, the respondents denied and continue to deny that a contract of carriage existed for the transport of the subject Mercedes, and now claim that the "Original" MTL Bill of Lading is not evidence of a contract of carriage. It is respectfully submitted that respondents' reply continues to beg the question, which is, to wit: did respondents convert the subject Mercedes in respondents' warehouse *prior* to shipment abroad (thus allegedly depriving this Commission of Jurisdiction in this matter) or did a contract of carriage exist between the parties during the course of which the respondents exercised an unlawful "maritime lien" in violation the Shipping Act? The Certification of Alexander Safonov, in which he denies having purchased the subject Mercedes is evidence of the latter.

Further, and to the extent respondent MTL purports (albeit incorrectly) that "the same Bill of Lading was attached to and submitted to the U.S. District Court by Complainants in an April 9, 2014 Declaration...", that allegation could not be further from the truth. While respondent MTL has annexed an appendix to their reply containing a Bill of Lading, the Commission can clearly see that *these two documents are not the same*. Specifically, and aside from the obvious fact that complainants' Bill of Lading bears an "Original" stamp, the documents contain additional significant differences which the Commission can see via a side by side comparison of the documents. It is also noted that respondents' 'version' of the Bill of Lading appeared to have been created by respondents solely for purposes of litigation in the ongoing Federal litigation (as part of respondents' attempted fraud on the Court regarding material false statements that the Mercedes was sold to Mr. Safonov and that Safonov paid \$3500.00 for same) and contains confirmation codes purporting to be confirmation of filing with the U.S. Census Bureau, not contained within

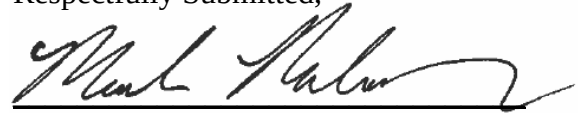
the “Original” Bill of Lading received by Safonov *after* the subject Mercedes was delivered to Dubai. To the extent that the Commission requires complainants to identify the other differences between the two documents, complainants will do so should leave to file a reply be granted.

CONCLUSION

For the foregoing reasons, complainants respectfully request that the Commission grant leave to file a response/reply to respondents reply to the Petition for Leave to Supplement Exceptions.

Dated: March 14, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

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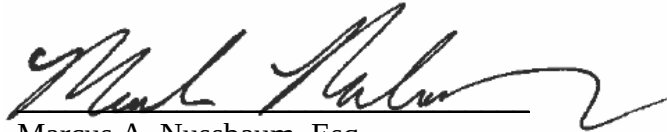
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR LEAVE TO FILE A RESPONSE/REPLY TO RESPONDENTS' REPLY TO PETITION FOR LEAVE TO SUPPLEMENT EXCEPTIONS** upon Respondents' Counsel at the following address:

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by first class mail, postage prepaid, and by email to: EChang@mmwr.com; svengrow@mmwr.com; and PeterCipparulo@cipplaw.com.

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', is written over a horizontal line.

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Dated: Brooklyn, New York
March 14, 2017